

Issue of Information Gathering Notice IGN-00008382 CRM:0155296252

From: [out of scope] [out of scope]@res-group.com>
Date: Mon 14/04/2025 15:06
To: [out of scope] [out of scope]@epa.vic.gov.au
Cc: [out of scope]@res-group.com; LLWF.Operations <LLWF.Operations@RES-GROUP.COM>

2 attachments (351 KB)

EPA IGN-00008382 - LAL LAL WIND FARMS NOM CO PTY LIMITED.pdf; Letter to EPA - IGN-8382 - April 2025.pdf

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Hi [out of scope]

Please see Lal Lal Wind Farms response to EPA's Information Gathering Notice IGN-00008382 dated 21/03/25 in the attached letter.

Due to file-sizing, I will send the referenced documents in 3 additional emails due to file size.

Looking forward to discussing the letter and associated documents in the RFI response meeting that Phil has scheduled 2:00pm tomorrow.

Kind regards,

[out of scope]



[out of scope]
Melbourne,
Australia
www.res-group.com

RES Australia Pty Limited, registered in New South Wales, Australia with ABN 55 106 637 754
Office Address: Level 6, 165 Walker Street, North Sydney, NSW 2060, Australia



We acknowledge the Traditional Owners of Country in Australia and their ongoing connections to land, waters and community. We pay our respect to Elders past and present and to all Aboriginal and Torres Strait Islander Peoples.

Find out more →

From: [out of scope] [out of scope]@res.vic.gov.au
Sent: Friday, 21 March 2025 3:38 PM
To: [out of scope]@res-group.com
Subject: Issue of Information Gathering Notice IGN-00008382 CRM:0155296252

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Environment Protection Authority Victoria

Issue of information gathering notice

Dear [out of scope],

Please see attached information gathering notice IGN-00008382 which has been issued to LAL LAL WIND FARMS NOM CO PTY LIMITED on 21/03/25 following a compliance assessment by EPA.

Please note you must complete the requirements set out in the notice by the specified due date(s) outlined in this notice. EPA may conduct an inspection at any time to assess compliance with the notice.

Regards,

[out of scope]

If you have any concerns, or don't think you should have received this email, please contact EPA on 1300 372 842 (1300 EPA VIC).

E contact@epa.vic.gov.au

P 1300 372 842

A GPO BOX 4395 Melbourne VIC 3001

epa.vic.gov.au



This email was sent by Environment Protection Authority Victoria
GPO BOX 4395, Melbourne VIC 3001



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Information gathering notice

Environment Protection Act 2017

Notice ID	IGN-00008382
Date of issue	21/03/25
Notice issued by	Name [out of scope] Delegate of the Environment Protection Authority ('the Authority') T 1300 372 842 (1300 EPA VIC) E [out of scope]@epa.vic.gov.au
Notice issued to	Name LAL LAL WIND FARMS NOM CO PTY LIMITED Address 24 Duggan Ln LAL LAL VIC 3352
ACN	625768774
Place or premises	24 Duggan Lane Lal Lal 3352
Legal reference	<i>Environment Protection Act 2017</i> (the Act), s. 255
Service method	Electronic communication

For the purpose of this notice 'you' means the recipient of this notice or your authorised representative.

Information gathering notice

Environment Protection Act 2017

Purpose for issuing this notice

The authority has determined that it is necessary to issue an information gathering notice to LAL LAL WIND FARMS NOM CO PTY LIMITED for the purposes of performing a function or duty or exercising a power under the Act.

Pursuant to sections 255(1)(a) and 255(1)(b) of the Environment Protection Act 2017 ("the Act"), information and documentation is required from LAL LAL WIND FARMS NOM CO PTY LIMITED for the purposes of promoting, monitoring and enforcing compliance under section 358(l) of the Act.

LAL LAL WIND FARMS NOM CO PTY LIMITED operate the Lal Lal Wind Energy Facility (LLWF) which is comprised of 60 wind turbines approximately 17 km southeast of Ballarat on two sections of farmland in the municipality of Moorabool Shire Council: the Yendon section and the Elaine section ("the premises").

Division 5 of Part 5.3 of the Environment Protection Regulations 2021 ("the EP Regs") sets out the requirements that apply to wind turbine noise emissions. These regulations apply to the LLWF and they include:

- 131C - Duty to manage and review wind turbine noise. Requires LLWF manage and review the wind turbine noise from the premises in accordance with the EP Regs
- 131CA - Duty to ensure compliance with noise limit or alternative monitoring point criterion. Requires LLWF to ensure compliance with the noise limit or the alternative monitoring point, if an alternative monitoring point is used, in order to comply with the general environmental duty under the Act (s. 25)
- 131D - Post-construction noise assessment. Requires LLWF to conduct a post-construction noise assessment within 12 months of operations by a suitably qualified acoustician in accordance with the New Zealand Standard 6808:2010 Acoustics - Wind farm noise (the 2010 Standard). The assessment must demonstrate whether or not the LLWF complies with the noise limit and the report must be verified by an EPA appointed environmental auditor
- 131E - Noise management plan. Requires LLWF to prepare and implement a noise management plan for the facility. LLWF must also engage an environmental auditor to prepare a report reviewing the Noise management plan
- 131F - Annual statement. Requires LLWF to provide an annual statement detailing noise complaints, evidence that operating modes have been complied, details of maintenance activities and noise remediation actions

The 2022-23 Annual Statement for the Lal Lal Wind Farm dated 31 October 2023 states that:

- the LLWF had agreed to complete on-off noise testing and mitigation works for property reference J13aa and J14aa in Elaine, and L28aa in Yendon. An acoustic consultant had also been engaged to perform further investigation at property reference G27ae
- Total complaints received for this financial year directly by the LLWF was 367

The 2023-24 Annual Statement for the Lal Lal Wind Farm dated 30 October 2024 states that:

- the LLWF committed to undertaking on-off noise testing and agreed mitigation works (acoustic treatments) to dwelling windows and doors for property reference J14aa (Elaine) and L28aa (Yendon)

Information gathering notice

Environment Protection Act 2017

Between January 2024 until March 2025, EPA have received approximately 61 pollution reports alleging noise impacts from the LLWF. The reports received have come from two residents, with the majority of the reports related to the Elaine section of the LLWF.

EPA reviewed auditor verifications for the LLWF including - Lal Lal Wind Farm – Elaine Verification of Post-construction Noise Assessment dated 28 June 2022, Lal Lal Wind Farm - Elaine Verification of Post-Construction Assessment (Revised Report) dated 13 November 2023, Lal Lal Wind Farm - Yendon Verification of Post-Construction Noise Assessment dated 7 December 2023, and Lal Lal Wind Farm Verification of Stage 2 Post-Construction Noise Assessment - Wind Turbine Generators dated 24 September 2024 and noted that:

- the LLWF does not appear to have complied with regulation 131D(3)(b) of the EP Regs for the Yendon section of the LLWF as no auditor verification has been completed for this section of the wind farm

In order to assess compliance with the Act, the Authority requires information and documentation associated with the premises and the emission of wind turbine noise from the LLWF.

Requirements

You are required to:

1. By 4:00pm on 14/04/25 you must pursuant to section 255(1)(a) of the Environment Protection Act 2017, provide to the Authority the following information relating to wind turbine noise emissions and compliance with the Environment Protection Regulations 2021 for LAL LAL WIND FARMS NOM CO PTY LIMITED:

(a) how the LLWF has complied with Regulation 131D of the Environment Protection Regulations 2021, including engaging an EPA appointed environmental auditor to prepare a report under regulation 164(ca)(i) in relation to the post construction noise assessment

(b) whether the auditor verification reports titled Lal Lal Wind Farm – Elaine Verification of Post-construction Noise Assessment dated 28 June 2022, Lal Lal Wind Farm - Elaine Verification of Post-Construction Assessment (Revised Report) dated 13 November 2023, Lal Lal Wind Farm - Yendon Verification of Post-Construction Noise Assessment dated 7 December 2023, and Lal Lal Wind Farm Verification of Stage 2 Post-Construction Noise Assessment - Wind Turbine Generators dated 24 September 2024 are intended to be all of the auditor verification reports required under Regulation 131D

(c) whether the LLWF has engaged any more EPA appointed auditors to undertake further verifications of any post-construction noise assessments for the purpose of compliance with the Environment Protection Act 2017 or the Environment Protection Regulations 2021

(d) why there were two auditor verifications undertaken for the Stage 1 Post-construction noise assessment for the Elaine section of the LLWF

(e) why there was one auditor verification undertaken for the Stage 1 Post-construction noise assessment for the Yendon section of the LLWF

Information gathering notice

Environment Protection Act 2017

1.1 The manner in which the information requested in requirement 1(a)-(e) is to be provided to EPA is via email to [out of] MOLLER-NIELSEN [out of] mollernielsen@epa.vic.gov.au or via post to the Attention of [out of] MOLLER-NIELSEN at Environment Protection Authority, 33 Mackey Street, North Geelong, Victoria 3215.

2. By 4:00pm on 14/04/25 you must pursuant to section 255(1)(b) of the Environment Protection Act 2017, provide to the Authority the following class of documents relating to wind turbine noise emissions and compliance with the Environment Protection Regulations 2021 for the Lal Lal Wind Farm operated by LAL LAL WIND FARMS NOM CO PTY LIMITED:

- (a) the post-construction noise assessment(s) prepared in accordance with Regulation 131D(3)(a) for the LLWF
- (b) the auditor verification report(s) of the post-construction noise assessment(s) prepared by an environmental auditor in accordance with Regulation 131D(3)(b) for the LLWF
- (c) all on-off noise testing reports conducted for the LLWF conducted at residential properties or other properties that further reviews compliance with the noise limits, including at property references J13aa, J14aa and L28aa
- (d) the acoustic investigation report conducted for the LLWF at property reference G27ae

2.1 The manner in which the information requested in requirement 2(a)-(d) is to be provided to EPA is via email to [out of scope] [out of] @epa.vic.gov.au or via post to the Attention of [out of scope] at Environment Protection Authority, 33 Mackey Street, North Geelong, Victoria 3215.

This information gathering notice takes effect from the date of service.

[out of scope]

[out of scope]

Delegate of the Authority

Penalty

If you fail to comply with this information gathering notice, you may be guilty of an offence and liable to pay a penalty of up to 60 penalty units (for an individual) or 300 penalty units (for a body corporate).

Information gathering notice

Environment Protection Act 2017

Right of review

You may apply to the Supreme Court to have this notice reviewed. For more information on your review rights, visit www.epa.vic.gov.au.

Amendment

You may apply for an extension of time for any requirement in the notice at least 10 business days before its due date. Your notice remains legally binding until EPA advises you of any change. Application forms and further information about time frames for the application are available at www.epa.vic.gov.au.

Additional information

Under section 268 of the Act, if you are a natural person, you may refuse or fail to give EPA the information requested in this notice if it would tend to incriminate you. However, this does not apply to requests for documents.

Privacy statement

Section 455 of the Act requires EPA to maintain a public register where we may choose to publish information gathering notices.

Accessibility

Contact us if you need this information in an accessible format such as large print or audio.

Please telephone 1300 EPA VIC (1300 372 842) or email contact@epa.vic.gov.au

Interpreter assistance



If you need interpreter assistance or want this document translated, please call **131 450** and advise your preferred language. If you are deaf, or have a hearing or speech impairment, contact us through the [National Relay Service](#).

[out of scope]
Environment Protection Authority
33 Mackey Street
North Geelong VIC 3215

[out of scope] [\[out of scope\]@epa.vic.gov.au](mailto:[out of scope]@epa.vic.gov.au)

14 April 2025

Dear [out of scope]

Lal Lal Wind Farm
Information gathering notice IGN-00008382

We refer to the above information gathering notice issued by the EPA on 21 March 2025 (Notice). Lal Lal Wind Farms Nom Co Pty Ltd (LLWF) provides its responses to the matters set out in the Notice below.

1 Preliminary analysis

Regulation 131D does not apply to Lal Lal Wind Farm

The Lal Lal Wind Farm (Wind Farm) is comprised of two stages, known as the Elaine section and the Yendon section.

We note that the Notice appears based on the proposition that reg 131D of the *Environment Protection Regulations 2021* (EP Regulations) applies to Lal Lal Wind Farm (Wind Farm), or to each of the Elaine and Yendon stages of the Wind Farm separately.

As a preliminary matter, we note that LLWF's understanding is that reg 131D does not apply to the Wind Farm, nor to the Elaine or Yendon stages of the Wind Farm. The basis for this understanding is:

- reg 131D(1) refers to an operator of a wind energy facility 'that commences operation on or after 1 November 2021', where 'commences operation' is not defined and is to be given its ordinary meaning;
- the Wind Farm completed commissioning on 10 December 2020 and commenced operating, in that turbines were generating power following commissioning, from that date: To provide further detail:
 - the Elaine section commenced generating power (pre-completion of commissioning) on 8 April 2020; and
 - the Yendon section commenced generating power (pre-completion of commissioning) on 20 June 2019.
- Constraints were lifted on the Elaine section of the Wind Farm by the Australian Energy Market Operator (AEMO) on 8 September 2020.
- the Yendon section of the Wind Farm was released to full output by the Australian Energy Market Operator (AEMO) on 22 December 2020 which supports LLWF's position that the Wind Farm (that is, the wind energy facility) had 'commenced operating' prior to 1 November 2021.

Noting the purpose of the regime is to protect neighbours from undue operational noise from the time noise commences and during the life of a wind farm, it is considered that the time at which a wind farm 'commences operation' is the time at which commissioning of turbines is complete and the turbines commence generating electricity. It is at this point that they generate the kind of noise that the relevant planning permit, and now the EP Regulations, are seeking to regulate.

The planning permit for the Wind Farm, PL-SP/05/0461/C (**Planning Permit**), required a noise compliance testing plan to be prepared to the satisfaction of the Minister for Planning, and a plan was prepared and endorsed on 6 April 2018. The endorsed plan provides that compliance measurements shall be conducted in two stages of monitoring: the first to commence within two months of commissioning of the Wind Farm; and the second to commence between 10 and 12 months of commissioning of the Wind Farm. As detailed below, post-construction compliance monitoring under the Planning Permit for both Elaine and Yendon commenced in March 2021.

Requested information

In response to item 1 of the Notice, LLWF advises:

- (a) how LLWF has complied with regulation 131D of the *Environment Protection Regulations 2021 (EP Regulations)*, including engaging an EPA appointed environmental auditor to prepare a report under regulation 164(ca)(i) in relation to post-construction noise assessment (PCNA).

As the Wind Farm commenced operation prior to 1 November 2021, reg 131D of the EP Regulations does not apply to the Wind Farm and it was not required to undertake PCNAs and verification by an EPA-appointed auditor for the purposes of the EP Regulations.

However, and for completeness, pursuant to the Planning Permit, LLWF engaged SLR, led by Gustaf Reutersward, to undertake staged post-construction compliance monitoring and prepare reports, and [out] of Arup, at the relevant times an EPA-appointed auditor, to verify the compliance monitoring reports and prepare associated reports.

Details of the compliance monitoring and auditor verifications, undertaken and prepared pursuant to the Planning Permit are as follows:

- (1) **Stage 1 testing at Elaine:** monitoring was undertaken between March 2021 and May 2021. A report was prepared and finalised on 27 June 2022, which concluded that the compliance monitoring indicated that the Wind Farm complied with the relevant noise limits at all receivers. The report was verified by [out] and an audit report was completed on 28 June 2022.

Following identification of an error (see detail in point (d) below), a correction was made to the compliance monitoring report and a revised version issued on 31 October 2023, which concluded that the compliance monitoring indicated that the Wind Farm complied with the relevant noise limits at all reference receivers. This corrected version was verified by [out] in his report dated 13 November 2023.

- (2) **Stage 1 testing at Yendon:** monitoring was undertaken between March and May 2021. Due to insufficient data points being collected during this period as a result of restrictions in operation during this period, including AEMO constraints and blade repair work, additional noise monitoring was undertaken between September and November

2021 and again between May and August 2022. A report was prepared and finalised on 31 October 2023, which concluded that the Wind Farm complied with the all-time period noise limits at all reference receivers and indicated marginal exceedance of night-time noise limits at two reference receivers, though the report commented that this may have been the result of extraneous noise. The report was verified by [ou]out and an audit report was completed on 13 November 2023.

- (3) **Stage 2 testing at Elaine and Yendon:** a second stage of compliance monitoring was undertaken at Elaine and Yendon between March 2023 and January 2024. A report on this second stage compliance monitoring was prepared and finalised on 20 September 2024, which concluded that the Wind Farm complied with the relevant noise limits at all reference receivers. The report was verified by [ou]out and an audit report was completed on 24 September 2024.

- (b) whether the auditor verification reports titled *Lal Lal Wind Farm – Elaine Verification of Post-construction Noise Assessment* dated 28 June 2022, *Lal Lal Wind Farm - Elaine Verification of Post-Construction Assessment (Revised Report)* dated 13 November 2023, *Lal Lal Wind Farm - Yendon Verification of Post-Construction Noise Assessment* dated 7 December 2023, and *Lal Lal Wind Farm Verification of Stage 2 Post-Construction Noise Assessment - Wind Turbine Generators* dated 24 September 2024 are intended to be all of the auditor verification reports required under Regulation 131D.

As above, reg 131D does not apply to the Wind Farm. However, LLWF advises that the listed reports are the auditor verification reports prepared for staged compliance monitoring undertaken pursuant to the Planning Permit, as described above.

- (c) whether LLWF has engaged any more EPA appointed auditors to undertake further verifications of any PCNAs for the purpose of compliance with the *Environment Protection Act 2017* or the EP Regulations.

LLWF has not engaged any EPA-appointed auditors to undertake verifications of any PCNAs for the purposes of the EP Regulations, noting no requirement has yet arisen. [ou]out is the auditor that has been appointed to undertake verification audits of the compliance monitoring for the purposes of the Planning Permit.

- (d) why there were two auditor verifications undertaken for the Stage 1 Post-construction noise assessment for the Elaine section of the LLWF.

In or about September 2023, SLR identified a transcription error in the Stage 1 Elaine compliance monitoring report, namely that a '-' was entered into an equation used to define the night-time background noise levels at receiver K15aa instead of a '+'. The effect of this was that the baseline equation and the reported 'background + 5 dBA' portion of the night-time noise limit was not correct. Following correction of this transcription error, the results remained that the Wind Farm complied with the night-time noise limit at receiver K15aa by a minimum margin of 3 dBA.

This error was corrected and a revised compliance monitoring report was prepared by SLR, dated 31 October 2023, and LLWF engaged [ou]out to audit and verify the revised report. SLR provided a letter dated 4 September 2023 explaining the error and this letter is included at Appendix A of Mr Spink's verification report dated 13 November 2023.

- (e) why there was one auditor verification undertaken for the Stage 1 Post-construction noise assessment for the Yendon section of the LLWF.

Only one auditor verification was undertaken for the Stage 1 Yendon compliance monitoring as the second auditor verification for Stage 1 Elaine compliance monitoring only arose as a result of the identified transcription error. This error did not occur in or impact on the Stage 1 Yendon compliance monitoring.

Requested documents

In response to item 2 of the notice, LLWF provides the following comments and documents, **enclosed**:

- (a) the post-construction noise assessment(s) prepared in accordance with reg 131D(3)(a) for the Wind Farm.

As above, reg 131D does not apply to the Wind Farm. However, LLWF provides the following compliance monitoring reports prepared pursuant to the Planning Permit:

(1) **Stage 1 Elaine**

- *SLR Stage 1 Elaine Post-construction Noise Assessment (ref. 640.11872-R04-V1.7) dated 27 June 2022 (superseded by the below, as discussed above)*
- *SLR Stage 1 Elaine Post-construction Noise Assessment (ref. 640.11872-R04-V2.0) dated 31 October 2023 (revised, as discussed above)*

(2) **Stage 1 Yendon**

- *SLR Stage 1 Yendon Post-construction Noise Assessment (ref. 640.11872-R15-V1.7) dated 31 October 2023*

(3) **Stage 2 Elaine and Yendon**

- *SLR Stage 2 Elaine and Yendon Post-construction Noise Assessment (ref. 640.11872-R17-V1.2) dated 20 September 2024*

The above reports, save for the superseded Stage 1 Elaine report, are published on the Wind Farm's website.

- (b) the auditor verification report(s) of the PCNAs prepared by an environmental auditor in accordance with reg 131D(3)(b) for the Wind Farm.

As above, reg 131D does not apply to the Wind Farm. However, LLWF provides the following auditor verification reports of the compliance monitoring reports prepared pursuant to the Planning Permit:

(1) **Stage 1 Elaine**

- *Arup Stage 1 Elaine Verification of Post-construction Noise Assessment (ref. 270849-00) dated 28 June 2022 (superseded by the below, as discussed above)*
- *Arup Stage 1 Elaine Verification of Post-Construction Assessment (Revised) (ref. 270849-00) dated 13 November 2023 (revised, as discussed above)*

(2) **Stage 1 Yendon**

- *Arup Stage 1 Yendon Verification of Post-Construction Noise Assessment (ref. 270849-00) dated 7 December 2023*

(3) **Stage 2 Elaine and Yendon**

- *Arup Stage 2 Elaine and Yendon Verification of Post-Construction Noise Assessment (ref. 270849-00-R01) dated 24 September 2024*

- (c) all on-off noise testing reports conducted for the Wind Farm conducted at residential properties or other properties that further reviews compliance with the noise limits, including at property references J13aa, J14aa and L28aa.

LLWF has undertaken on-off testing at receivers J13aa, J14aa and L28aa, the assessment and results of which are reported on in the following report:

- *SLR On / Off Noise Testing (ref. 640.11872.00000-V1.0) dated 17 October 2024*

The report concludes that the noise levels from the Wind Farm indicate the minimum noise limit of 40 dBA is being met at each of the receivers, noting that this does not consider the alternative limit of 'background plus 5 dB'.

This report has been provided to the occupiers of each of the relevant receivers, with results relating to each other receiver redacted.

This report was also provided to the EPA on 14 March 2025 by email from Phil Hart of RES to [out of scope] with the subject line "RE: EPA Follow Up to Meeting on 18 Feb 2025".

- (d) the acoustic investigation report conducted for the Wind Farm at property reference G27.

LLWF has undertaken noise monitoring at receiver G27ae, the assessment and results of which are reported on in the following report:

- *SLR 270 Harbors Road, Yendon – Noise Monitoring (ref. 640.11872-R19-V1.0) dated 15 January 2024*

This report concludes that subjective listening assessments of recorded audio generally identified that no clearly identifiable Wind Farm noise was discernible nor were any clearly identifiable special audible characteristics observed to be present that would be attributable to the Wind Farm. Further, the noise levels during the night-time periods, being the periods which coincided with the receiver's noise log for the monitoring period, were below the minimum noise limit of 40 dBA, noting that this does not consider the alternative limit of 'background plus 5 dB'.

Next steps

We trust that the above and enclosed information satisfies the requirements of the notice. Should the EPA have any further queries, please feel free to contact [out of scope] on [out of scope], or by email at [out of scope]@res-group.com

Yours sincerely
[out of scope]

[out of scope]

[out of scope]

Lal Lal Wind Farms Nom Co Pty Ltd

Encl.

- 1 Planning Permit PL-SP/05/0461/C
- 2 SLR – Stage 1 Elaine Post-construction Noise Assessment (ref. 640.11872-R04-V1.7) dated 27 June 2022
- 3 SLR – Stage 1 Elaine Post-construction Noise Assessment (ref. 640.11872-R04-V2.0) dated 31 October 2023
- 4 SLR – Stage 1 Yendon Post-construction Noise Assessment (ref. 640.11872-R15-V1.7) dated 31 October 2023
- 5 SLR – Stage 2 Elaine and Yendon Post-construction Noise Assessment (ref. 640.11872-R17-V1.2) dated 20 September 2024
- 6 Arup – Stage 1 Elaine Verification of Post-construction Noise Assessment (ref. 270849-00) dated 28 June 2022
- 7 Arup – Stage 1 Elaine Verification of Post-Construction Assessment (Revised) (ref. 270849-00) dated 13 November 2023
- 8 Arup – Stage 1 Yendon Verification of Post-Construction Noise Assessment (ref. 270849-00) dated 7 December 2023
- 9 Arup – Stage 2 Elaine and Yendon Verification of Post-Construction Noise Assessment (ref. 270849-00-R01) dated 24 September 2024
- 10 SLR – On/off noise testing (ref. 640.11872.00000) dated 17 October 2024
- 11 SLR – 270 Harbors Road, Yendon – Noise Monitoring (ref. 640.11872-R19-V1.0) dated 15 January 2024